

**BEFORE THE
FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,
Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,
Respondent.

**DECLARATION OF NGUYEN TIEN PHUONG IN SUPPORT OF COMPLAINANT'S
RENEWED MOTION FOR LEAVE TO ACCEPT LATE-FILED CORRECTED JOINT STATUS
REPORT, TO DEEM THE APRIL 14, 2026 CADRS PRELIMINARY CONFERENCE
SATISFIED, AND FOR RELATED RELIEF**

I, Nguyen Tien Phuong, declare under penalty of perjury under the laws of the United States of America as follows:

1. I am the Director of Southern International Co., Ltd. ("SIC"), the Complainant in this proceeding. I have personal knowledge of the facts stated herein.
2. I submit this declaration in support of SIC's Renewed Motion for Leave to Accept Late-Filed Corrected Joint Status Report, to Deem the April 14, 2026 CADRS Preliminary Conference Satisfied, and for Related Relief.
3. Respondent served its Verified Answer, Affirmative Defenses, and Counterclaim on March 27, 2026.
4. SIC exchanged its initial disclosures on April 3, 2026, and Respondent exchanged its initial disclosures on April 4, 2026.
5. On April 3, 2026, SIC sent Respondent's counsel an initial draft of the Joint Status Report for review and requested comments.
6. On April 10, 2026, Respondent's counsel advised that he and his client were reviewing SIC's proposal, acknowledged that the Joint Status Report was due on Monday because April 11 fell on a Saturday, and stated that he would get back to SIC.
7. Respondent thereafter provided revisions to the proposed Joint Status Report, including further revisions transmitted on April 13, 2026.
8. Based on these exchanges, I understood that the parties had substantially conferred regarding the contents of the Joint Status Report before the deadline.
9. Before SIC filed the Joint Status Report on April 14, 2026, I did not obtain an express authorization from Respondent to represent that the Joint Status Report had been fully executed in joint form.
10. Regarding the mandatory CADRS preliminary conference, SIC contacted CADRS on April 10, 2026.



11. The CADRS preliminary conference was scheduled for April 14, 2026 at 9:00 a.m. Washington, D.C. time.
12. Respondent's counsel confirmed that he and Respondent's representative, Zia Kamali, would participate, and SIC also confirmed its attendance.
13. The CADRS preliminary conference was held on April 14, 2026.
14. On April 14, 2026, SIC filed the Joint Status Report and its prior motion.
15. SIC understands from the Administrative Law Judge's April 16, 2026 Order that the prior motion was deficient because it did not expressly request relief concerning the deadline for filing a fully executed Joint Status Report and did not clearly state Respondent's position concerning the specific relief sought in the motion.
16. After entry of that Order, SIC renewed conferral with Respondent.
17. On April 19, 2026, SIC sent Respondent's counsel an email pursuant to 46 C.F.R. § 502.71(a), specifically asking Respondent's position regarding: (a) deeming the April 14, 2026 CADRS preliminary conference satisfied; (b) accepting the Joint Status Report filed on April 14, 2026 as a late filing or, alternatively, accepting a corrected Joint Status Report out of time; (c) whether Respondent would execute a corrected Joint Status Report; and (d) whether Respondent contended that any portion of the proposed schedule remained disputed.
18. Respondent's counsel replied that he had no issue with timeliness.
19. SIC then continued working with Respondent's counsel to finalize a corrected Joint Status Report.
20. On April 20, 2026, after a technical issue arose in opening one transmitted version, SIC sent Respondent's counsel the final corrected draft in editable Word format for signature.
21. On April 21, 2026, Respondent's counsel returned the signed Corrected Joint Status Report and indicated that the last version was acceptable.
22. The attached Corrected Joint Status Report is the final version reviewed and executed by both sides.
23. To my knowledge, Respondent suffered no concrete prejudice from the one-day delay because Respondent participated in the CADRS conference, had already exchanged initial disclosures, reviewed and revised the proposed schedule before the deadline, stated that he had no issue with timeliness, and executed the corrected Joint Status Report.
24. SIC files the renewed motion in good faith to cure the defects identified in the Administrative Law Judge's April 16, 2026 Order.
25. SIC has continued actively to prosecute this proceeding.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on: Apr 21st, 2026
At: Ho Chi Minh City, Vietnam

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By: _____
Nguyen Tien Phuong

Southern International Co., Ltd.

64 Truong Dinh, Xuan Hoa Ward,

Ho Chi Minh City, Vietnam

Emails: southern@southern.com.vn; nam@southern.com.vn

Phone: +84 775 192 912

Dated: Apr 21, 2026



Giám Đốc
Nguyễn Tiến Phương

